

Superior Court of Washington, County of _____
Juvenile Court

In Re Voluntary Placement of:

D.O.B.: _____

Case Number: _____

**Petition for Court Validation of
Voluntary Consent to Foster Care
Placement of an Indian Child**

(Clerk Code: PTVCF)

I. Basis

I represent to the Court the following:

1.1 Information about the child:

☐ male ☐ female

Name	
Date of Birth	
Home Address	

☐ The child's residence/domicile is located within the reservation boundaries of the _____ Tribe.

☐ The child's residence/domicile is not located within the reservation boundaries of an Indian reservation.

☐ Due to the following reasons, there is not enough information available at this time to determine whether the child's residence/domicile is within an Indian reservation:

_____.

1.2 Child's Indian Status: There is reason to know the child is an Indian child as defined by the federal and state Indian Child Welfare Acts, 25 U.S.C. § 1903(4) and RCW 13.38.040(7). The child:

☐ Is a member of the _____ Tribe(s). The Tribe's address is:

_____.

☐ Is eligible for membership in the _____ Tribe(s) and is the biological child of a member of the _____ Tribe(s).
The Tribe's address is: _____

_____.

☐ There is reason to know the child is Indian based on the following factor(s):

_____.

1.3 Verification of Child's Indian Status: The following steps have been taken to verify the child's Indian status: _____

_____.

1.4 Known information about the child's legal status:

The child:

☐ is not the subject of any Tribal Court custody order.

☐ is the subject of a Tribal Custody order, a copy of which is attached.

The child:

☐ is not a ward of Tribal Court.

☐ is a ward of Tribal Court. The Tribal Court's contact information is: _____

_____.

☐ Due to the following reasons, there is not enough information available at this time to determine if the child is a ward of Tribal Court: _____

_____.

1.5 Known information about the parent(s)/Indian custodian(s):

	☐ Parent 1	☐ Parent 2 ☐ presumed ☐ alleged
Name		
Date of Birth		
Marital status	☐ single ☐ married ☐ other	☐ single ☐ married ☐ other
Tribal affiliation, if any		
Home Address		
Agrees to foster care placement of the child?	☐ yes ☐ no ☐ unknown	☐ yes ☐ no ☐ unknown

	☐ Parent 3 ☐ presumed ☐ alleged	☐ Custodian/Legal Guardian
Name		
Date of Birth		
Marital status	☐ single ☐ married ☐ other	
Tribal affiliation, if any		
Home Address		
Agrees to foster care placement of the child?	☐ yes ☐ no ☐ unknown	☐ yes ☐ no ☐ unknown

1.6 Non-consenting Parent(s)/Indian Custodian(s): The following attempts were made to ascertain the identity, location, and custodian status for each parent/Indian Custodian who does not consent to foster care placement:

1.7 Custody: The consenting parent(s)/Indian Custodian(s) cannot continue custody of the child at this time for the following reasons:

The non-consenting parent(s)/Indian Custodian(s) cannot assume custody of the child at this time for the following reasons:

1.8 Placement: The placement preferences of 25 U.S.C. § 1915(b) or (c); and RCW 13.38.180 ☐ will ☐ will not be followed.

The child will be placed with:

- ☐ Relatives, _____;
- ☐ An Indian family of the same tribe as the child;
- ☐ An Indian family of a Washington Indian tribe of a similar culture to that tribe;

- ☐ Any other family which can provide a suitable home for an Indian child, such suitability to be determined through consultation with a local Indian Child Welfare Advisory Committee (LICWAC);
- ☐ A foster home approved by the Indian child's tribe;
- ☐ A licensed Indian foster home;
- ☐ Other:

II. Relief Requested

I request that the Court validate the voluntary consent to foster care placement, as provided in RCW 13.34.245, RCW 13.38.150, and 25 U.S.C. § 1913(a), and enter an order authorizing the parent(s) to sign a consent to foster care placement, placing this child in licensed foster care.

Dated: _____
Petitioner

 Type or Print Name/Title

III. Certification

I declare under penalty of perjury under the laws of the state of Washington that the foregoing representations are true and correct.

Signed at (city) _____, Washington on (date) _____.

 Petitioner's Signature

 Print Petitioner's Name

Approved:

Dated this _____ day of _____, 20____.

 Print Name/Title

 WSBA No.